

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.:

Date Purchased: 8/22/17

-----X  
NANCY PADILLA,

Plaintiff,

-against-

**SUMMONS**

Plaintiff designates  
BRONX County as the  
place of trial

CITY OF NEW YORK, P.O. THOMAS DIGGS,  
P.O. MELVIN THOMAS, Sgt. DERVENT WILLIAMS  
and OFFICER[S ] JOHN AND JAMES DOE, names  
presently unknowable by Plaintiff and being fictitious  
and meant to designate additional offending officers,  
Defendants.

The basis of venue is:  
CPLR 504 (3)

-----X  
**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and  
serve a copy of your answer, or, if the complaint is not served with this summons, to  
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the  
service of this summons, exclusive of the day of service, where service is made by  
delivery upon you personally within the state, or within 30 days after completion of  
service where service is made in any other manner. In case of your failure to appear or  
answer, judgment will be taken against you by default for the relief demanded in the  
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

August 22, 2017

  
By: **JONATHAN L. GLEIT, ESQ.**  
*Attorney for Plaintiff*

888 Grand Concourse  
Suite 1-O  
Bronx, NY 10451  
(718) 742-0200

To:  
CITY OF NEW YORK CORPORATION COUNSEL  
100 Church Street, 4th Floor, Law Dept.  
New York, New York 10007

P.O. Thomas Diggs, Shield 20336; P.O. Melvin Thomas, Shield No. 16356 and Sgt. Dervent Williams  
Shield No. 1719, all of the 41st Precinct, 1035 Longwood Ave, Bronx NY 10459

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
NANCY PADILLA,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. THOMAS DIGGS, P.O. MELVIN  
THOMAS, Sgt. DERVENT WILLIAMS and OFFICER[S]  
JOHN AND JAMES DOE, names presently unknowable  
by Plaintiff and being fictitious and meant to designate  
additional offending officers,

Defendants.  
-----X

Plaintiff, by her attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,  
  
respectfully alleges, upon information and belief, as follows:

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE**  
**PLAINTIFF NANCY PADILLA**

1. At the time of the commencement of this action, plaintiff NANCY PADILLA was  
  
and still is a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and  
  
State of New York.

3. That at all times herein mentioned, Defendants CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about June 8, 2016, P.O. THOMAS DIGGS was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about June 8, 2016, at approximately 12:15 P.M., P.O. THOMAS DIGGS was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about June 8, 2016, P.O. MELVIN THOMAS was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about June 8, 2016, at approximately 12:15 P.M., P.O. MELVIN THOMAS was working and acting within the scope of his employment as a Police Officer, and under the color of law
9. That on and about June 8, 2016, Sgt. DERVENT WILLIAMS was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

10. That on and about June 8, 2016, at approximately 12:15 P.M., Sgt. DERVENT WILLIAMS was working and acting within the scope of his employment as a Police Officer, and under the color of law

11. That on and about June 8, 2016, OFFICER[S] JOHN AND/OR JAMES DOE, whose names are presently unknowable by Plaintiff, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

12. That on and about June 8, 2016, at approximately 12:15 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

13. That on or about June 8, 2016 at approximately 12:15 P.M., at or near Bryant Avenue near the intersection of Aldus Street, Bronx, New York, the plaintiff NANCY PADILLA was improperly arrested and confined without knowledge of warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine NANCY PADILLA .

14. That immediately prior thereto, the plaintiff NANCY PADILLA was lawfully walking on the sidewalk with an acquaintance.

15. That immediately thereafter two police officers arrived in a vehicle and approached, questioned, searched and detained plaintiff and plaintiff's acquaintance.

16. While being initially detained, plaintiff's phone rang, and when she went to answer the phone an officer stated, in sum and substance, "Oh, you're going to video us? Now you're going in." Plaintiff was then handcuffed and searched.

17. That the defendants, their agents, servants and/or employees arrested the plaintiff NANCY PADILLA without any basis in law or fact and without reasonable, probable or just cause or justification.

18. That the defendants, their agents, servants and/or employees arrested the plaintiff NANCY PADILLA without any basis in law or fact, by making false accusations against her, when they knew, or in the exercise of reasonable care, should have known they were false.

19. That the defendants P.O. THOMAS DIGGS, P.O. MELVIN THOMAS, Sgt. DERVENT WILLIAMS and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing her to suffer an unjust prosecution initiated without probable cause that the prosecution would succeed.

20. That defendants, their agents, servants and/or employees continued to prosecute plaintiff NANCY PADILLA and threaten and deny her freedom after they knew, or should have known, she was innocent of all charges being alleged against her.

21. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiff NANCY PADILLA, who was aware of her unlawful detention and confinement and took her property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.
22. Following the aforesaid arrest, plaintiff was transported to the 41st Precinct, 41st Precinct 1035 Longwood Avenue, Bronx, NY, where she was subjected to a strip search conducted without a reasonable articulable suspicion that she was secreting evidence underneath clothing or within a bodily cavity.
23. That the aforesaid unlawful strip search was conducted at the direction of P.O. THOMAS DIGGS, P.O. MELVIN THOMAS, Sgt. DERVENT WILLIAMS or by a officer presently unknowable by plaintiff, but necessarily known by defendants.
24. The commencement of the criminal proceedings, which was assigned Docket No. 2016BX025166 in the Criminal Court of the City of New York, Bronx County, was malicious and begun with actual malice and without probable cause.
25. That on January 30, 2017 all criminal charges were dismissed by Hon. Steven Hornstein, a Judge of the aforesaid Court, and the prosecution was terminated in plaintiff's favor.

26. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens and engaging in a policy and procedure of arresting persons upon pretext and /or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and the subjugate minority population without reprimand to the offending officers.

27. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

28. Said policy, practice and procedure of having arrest quotas, euphemistically known as productivity goals, which result in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

29. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas lead to a practice and procedure of, for instance, arresting persons for conduct that is not criminal.

30. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department..

31. Furthermore patterns of the NYPD and their officers alleging persons were involved in the sale of narcotics when the arrested persons were not, in fact, in any way involved in the sales of narcotics, and there was no probable cause to arrest said persons has occurred to such individuals as Jonathan Bailey on August 3, 2011; Jose Reyes on December 14, 2011; Frank Aquino on August 22, 2012; Martin Delozier and Terrance Watson on October 12, 2012; Bryan Madera on April 8, 2013; Anthony Jones on June 5, 2013; Manuel Lugo on June 14, 2013; Derrick Gray on September 5, 2014, Renard

Grooms on September 10, 2014; Ruben Perez on July 20, 2015; John Lawrence on August 3, 2015 as well as hundreds of other innocent persons know to the defendants by virtue of the dismissal of all charges against such persons, for, amongst other reasons, a lack of evidence, and complaints, claims and actions brought against said officers, and upon the CITY OF NEW YORK's own tabulations and investigations.

32. Furthermore patterns of wrongful strip searches conducted without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity has occurred to such individuals such as, for instance, on May 19, 2009 PORFIRIO ASECIO was improperly strip searched by officers of the 41st Precinct ; on November 13, 2009; DARREL NESMITH was improperly strip searched by officers of the 41st Precinct; on March 20, 2010 RENA RODRIGUEZ, RAMON RODRIGUEZ, Jr. and RAMON RODRIGUEZ, Sr. were improperly strip searched by officers of the 41st Precinct; on April 17, 2009 EDGAR TORRES and JASON RIVERA were improperly strip searched by officers of the 41st Precinct; on April 14, 2010 JUAN QUINONES was improperly strip searched by officers of the 41st Precinct; on February 16, 2010 DANIEL TORRES was improperly strip searched by officers of the 41st Precinct; On January 10, 2011 JONATHAN COLON was improperly strip searched by officers of the 41st Precinct; On October 14, 2011 SHEAROD PRICE was improperly strip searched by

officers of the 41st Precinct; On March 28, 2013 ISALAH STEWART was improperly strip searched by officers of the 41st Precinct; and is further well evidenced by the May 14, 2004 letter by the Civilian Complaint Review Board with attachments to Police Commissioner Raymond Kelly, detailing the NYPD policy of illegal strip searched by their officers, a copy of which is available to the public at <http://www.nyc.gov/html/ccrb/downloads/pdf/stripsearchletter.pdf>, and as evidenced by the above and within individuals and countless others demonstrates that said practices continue unabated.

33. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

34. That no negligence or actions on the part of the plaintiff NANCY PADILLA contributed to the occurrences alleged herein in any manner whatsoever.

35. The herein above described actions and omissions, engaged in under the color of law by the defendants, their supervisors and commanders and the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, institutionalized procedure and act, deprived the plaintiff NANCY PADILLA of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of her person, the Fifth Amendment rights of due process of

law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

36. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

37. That as a result of the foregoing, the plaintiff NANCY PADILLA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE**

**PLAINTIFF NANCY PADILLA**

38. That plaintiff repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 37 as though more fully set forth herein.

39. That on or about September 6, 2016, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant NANCY PADILLA, to be presented to the defendant CITY OF NEW YORK, by delivering a copy thereof, to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the

manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

40. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant.

41. A General Municipal Law § 50-h hearing was held for claimant and claimant did testify thereat on April 10, 2017.

42. That this action is being commenced within one year and ninety days after accrual of the causes of action, or within the time allowed by law.

43. That on or about June 8, 2016 at approximately 12:15 P.M., at or near Bryant Avenue near the intersection of Aldus Street, Bronx, New York, the plaintiff NANCY PADILLA was improperly arrested and confined without knowledge of warrant, privilege, proper authority or justification or reasonable or probable cause, having no reason in law or in fact to arrest NANCY PADILLA.

44. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff NANCY PADILLA of Due Process under Law.

45. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants

and / or employees, NEW YORK CITY POLICE DEPARTMENT, P.O. THOMAS DIGGS and OFFICER[S] JOHN AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to False Arrest, and the defendants were otherwise careless, reckless and negligent.

46. That the plaintiff NANCY PADILLA, being aware of her unjust confinement, suffered severe and serious physical, emotional trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, P.O. THOMAS DIGGS, P.O. MELVIN THOMAS, Sgt. DERVENT WILLIAMS and OFFICER[S] JOHN AND/OR JAMES DOE.

47. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

48. That as a result of the foregoing, the plaintiff NANCY PADILLA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE**

**PLAINTIFF NANCY PADILLA**

49. That Plaintiff repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 48 as though more fully set forth herein.

50. That plaintiff was caused discomfort, fear, anxiety and pain as a result of the handcuffed she was placed in, which remained on during her detention at the 41st Precinct, Precinct 1035 Longwood Avenue, Bronx, NY, where she was cuffed to a bar.

51. That at the 41st Precinct plaintiff was subjected to a strip search conducted without a reasonable articulable suspicion that she was secreting evidence underneath clothing or within a bodily cavity.

52. That the aforesaid unlawful strip search was conducted at the direction of P.O. THOMAS DIGGS, P.O. MELVIN THOMAS, Sgt. DERVENT WILLIAMS or by a officer presently unknowable by plaintiff, but necessarily known by defendants.

53. That said strip search constituted a further battery and assault upon plaintiff and a gross invasion of her privacy causing discomfort, fright, shock, emotional distress and physical consequences.

54. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

55. That as a result of the foregoing, the plaintiff NANCY PADILLA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE**

**PLAINTIFF NANCY PADILLA**

56. That Plaintiff repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 55 as though more fully set forth herein.

57. That on or about February 2, 2017, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant NANCY PADILLA, to be presented to the defendant CITY OF NEW YORK, by delivering a copy thereof, to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

58. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant.

59. A General Municipal Law § 50-h hearing was held for claimant and claimant did testify thereat on April 10, 2017.

60. That this action is being commenced within one year and ninety days after accrual of the causes of action, or within the time allowed by law.

61. That the defendants, their agents, servants and/or employees prosecuted a criminal action against the plaintiff NANCY PADILLA without any basis in law or fact.
62. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the plaintiff NANCY PADILLA due to prejudice or with malice and without any basis in law or fact.
63. That the defendants P.O. THOMAS DIGGS, P.O. MELVIN THOMAS, Sgt. DERVENT WILLIAMS and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff NANCY PADILLA thereby causing her to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.
64. That defendants, their agents, servants and/or employees continued to prosecute plaintiff NANCY PADILLA and threaten her freedom after they knew, or should have known, she was innocent of all charges being alleged against her.
65. The commencement of the criminal proceedings, which was assigned Docket No. 2016BX025166 in the Criminal Court of the City of New York, Bronx County, was malicious and begun with actual malice and without probable cause.

66. That on January 30, 2017 all criminal charges were dismissed by Hon. Steven Hornstein, a Judge of the aforesaid Court, and the prosecution was terminated in plaintiff's favor.

67. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

68. As a result of the malicious prosecution, plaintiff was deprived of liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff was required to make court appearances to defend her liberty against these unjust charges, and suffered thereby for a period of approximately two hundred and thirty six days.

69. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

70. That as a result of the foregoing, the plaintiff NANCY PADILLA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE**

**PLAINTIFF NANCY PADILLA**

71. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 70 as though more fully set forth herein.

72. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

73. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals.

74. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, plaintiff NANCY PADILLA was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

75. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second, Third, Fourth and Fifth Causes of Action, and inclusive of punitive damages, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.  
August 22, 2017



By: JONATHAN L. GLEIT, ESQ.  
*Attorney for Plaintiff*

NANCY PADILLA

888 Grand Concourse  
Suite 1-O  
Bronx, NY 10451  
(718) 742-0200

To:

CITY OF NEW YORK  
CORPORATION COUNSEL  
100 Church Street  
4th Floor, Law Dept.  
New York, New York 10007

P.O. Thomas Diggs, Shield 20336; P.O. Melvin Thomas, Shield No. 16356 and  
Sgt. Dervent Williams, Shield No. 1719  
all of the 41st Precinct, 1035 Longwood Ave, Bronx NY 10459

## PLAINTIFF'S VERIFICATION

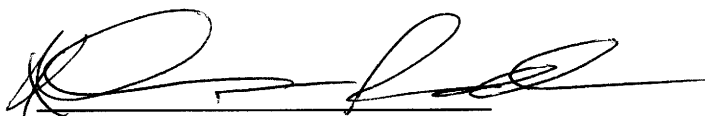
NANCY PADILLA, affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

*Complaint*

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.

A handwritten signature in black ink, appearing to read 'Nancy Padilla', written over a horizontal line.

NANCY PADILLA